
**CITY OF GALLATIN
COUNCIL MEETING**

July 07, 2020

6:00 pm

ELECTRONIC MEETING

Pursuant to Governor Lee's Executive Orders No. 16, No. 34 and No. 51 and the need to limit the community spread of COVID-19, the July 07, 2020 Gallatin City Council Meeting will be held by electronic means. The meeting will be live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin.

Join the Zoom Meeting at <https://us02web.zoom.us/j/88174356186> , dial +1 470 381 2552 or +1 470 250 9358, and enter Webinar ID: 881 7435 6186.

- Call to Order – Mayor Brown
- Invocation
- Roll Call: Alexander – Vice Mayor Camp – Fann – Fennell – Hayes – Love – Overton
- Approval of Minutes: June 02, 2020 City Council Meeting
- Public Recognition on Agenda-Related Items
- Mayor's Comments

AGENDA

1. **First Reading Ordinance No. 02007-26** Ordinance authorizing additional funds in the total amount of \$3,652,676.37 from remaining Gas System Revenue Bond Sales, Series 2019 for additions to existing contract "2019 Annual Gas Line Construction" in various areas of the City **(Councilwoman Love)**
2. **First Reading Ordinance No. 02007-28** Ordinance appropriating funds to Community Enhancement Grants and Community Service Grants for FY 2021 **(Councilman Fennell)**
3. **First Reading Ordinance No. 02007-29** Ordinance appropriating \$8,400,000 for Project Woolhawk utility infrastructure **(Councilman Fann)**
4. **Resolution No. R2006-32** A resolution amending the Urban Growth Boundary for the City of Gallatin and amending the Growth Plan for Sumner County Tennessee, by adding a 10.51 +/- acre parcel, a 0.24 +/- acre portion of parcel, a 0.04 +/- acre portion of the Old Hickory Lake Reservation and a 9.33 +/- acre portion of Big Station Camp Boulevard right-of-way to the Gallatin Urban Growth Boundary **(Councilman Hayes)**
5. **Resolution No. R2007-33** A resolution approving a waiver of the surety and development review and inspection fees **(Vice Mayor Camp)**
6. **Resolution No. R2007-34** Resolution approving the use of City right-of-way and approving a Hold Harmless Agreement with Certificate of Liability Insurance to use a portion of the West Eastland Avenue right-of-way for the installation and maintenance of an awning on the structure at 241 West Eastland Street **(Councilman Alexander)**

- Other Business
- Public Recognition on Non-Agenda-Related Items
- Adjourn

City of Gallatin City Council Electronic Meeting

June 2, 2020

Pursuant to Governor Lee's Executive Order #16 and #34 and the need to limit the community spread of COVID-19, the June 2, 2020 Gallatin City Council Meeting was held by electronic means. The meeting was live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin. Instructions for public participation in the meeting were available on the City's website.

Vice Mayor Steve Camp called the meeting to order at 6:00 P.M.

Councilman Fennell made motion to allow the meeting electronically; Councilman Overton seconded.

Vice Mayor Camp called for a roll call vote by City Recorder Connie Kittrell.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

Vice Mayor Camp called for a roll call vote for those present.

City Recorder Connie Kittrell called the roll and the following were present.

Council

Vice Mayor Steve Camp	Present
Councilman John D. Alexander	Present
Councilman Steve Fann	Present
Councilman Shawn Fennell	Present
Councilman Craig Hayes	Present
Councilwoman Lynda Love	Present
Councilman Jimmy Overton	Present

Department Heads/Others Present

Rachel Nichols, Finance Director
Susan High-McAuley, City Attorney
Bill McCord, City Planner
Connie Kittrell, City Recorder
Connie Flood, HR Director
James Fenton, EDA Director

Nick Tuttle, City Engineer
Lori Smiley, IT Director
Chuck Stuart, Building Codes Official
Zach Wilkinson, Public Works Dir.
David Gregory, Public Utilities Dir.
Jeff Hentschel, Comm. Dir

Approval of Minutes

There were no minutes presented for approval.

Public Recognition on Agenda Related Items

Vice Mayor Camp open public recognition on agenda related items.

Communications Director Jeff Hentschel stated the following are logged in for public recognition on agenda related items.

- Jill Russell made no comment.
- Michelle Jouvence made no comment.

With no one wishing to speak Vice Mayor Camp closed public recognition on agenda related items.

Mayor's Comments

- Vice Mayor Camp said the State of Emergency has not been extended.
- Vice Mayor Camp read a Proclamation recognizing and declaring June 2020 4H Dairy Month.

Agenda

1. Ordinance #O2005-22 – Public Hearing

Councilman Overton presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 0.67 (+/-) acre lot from the R-40 Low Density Residential District to the MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for the Montgomery Office, located south of Nashville Pike and east of Lakeshore Drive; authorizing the revision to the indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Vice Mayor Camp opened public hearing. With no one wishing to speak the public hearing was closed.

2. Ordinance #O2005-17 – Third Reading

Councilman Alexander presented this ordinance to provide revenue for the City of Gallatin, Tennessee for municipal purposes for the 2020 tax year and the 2021 fiscal year.

Councilman Alexander made motion to approve; Councilman Fennell seconded.

Vice Mayor Camp called for a roll call vote by City Recorder Connie Kittrell.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

3. Ordinance #O2005-20 – Second Reading

Councilman Fann presented this ordinance appropriating \$129,600 received from the State of Tennessee for training supplements.

Councilman Fann made motion to approve; Councilman Alexander second.

Vice Mayor Camp called for a roll call vote by City Recorder Connie Kittrell.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

4. Ordinance #O2005-21 - Second Reading

Councilman Fennell presented this ordinance waiving tap fees on behalf of Habitat for Humanity.

Councilman Fennell made motion to approve; Councilwoman Love seconded.

Vice Mayor Camp called for a roll call vote by City Recorder Connie Kittrell.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

5. Ordinance #O2005-23 - First Reading

Vice Mayor Camp presented this ordinance appropriating \$10,000 for Census Rapid Response Grant.

Vice Mayor Camp made motion to approve; Councilman Overton seconded.

Vice Mayor Camp called for a roll call vote by City Recorder Connie Kittrell.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

6. **Ordinance #O2006-24 – First Reading**

Councilman Alexander presented this ordinance appropriating \$15,510 for pooled city hall vehicle.

Councilman Alexander made motion to approve; Councilman Fann seconded.

Vice Mayor Camp called for a roll call vote by City Recorder Connie Kittrell.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

7. **Ordinance #O2006-25 – First Reading**

Councilwoman Love presented this ordinance of the City of Gallatin, Sumner County, Tennessee, to rezone 483.36 (+/-) acres from the R1A-Residential 1A (Sumner County) District to the IR-Industrial Restrictive District, to rezone 40.78 (+/-) acres from the MDRPUD-Medium Density Residential Planned Unit Development (Sumner County) District to the IR-Industrial Restrictive District, to rezone 116.22 (+/-) acres from R-15 (PRD) – Residential-15 Planned Residential Development District to the IR-Industrial Restrictive District, and to rezone 6.25 (+/-) acres from the A-Agricultural Residential District to the IR-Industrial Restrictive District, totaling 646.61 (+/-) acres, located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike; authorizing

the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Councilwoman Love made motion to approve; Councilman Fann seconded.

Vice Mayor Camp called for a roll call vote by City Recorder Connie Kittrell.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

8. Resolution #R2006-28

Councilman Overton presented this resolution addressing military deployment of police officers in the Police Department.

Councilman Overton made motion to approve; Councilman Alexander seconded.

Vice Mayor Camp called for a roll call vote by City Recorder Connie Kittrell.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

9. **Resolution #R2006-29**

Councilman Hayes presented this resolution accepting public improvements by the City of Gallatin, Tennessee Carellton, Phase 2B.

Councilman Hayes made motion to approve; Councilman Overton seconded.

Vice Mayor Camp called for a roll call vote by City Recorder Connie Kittrell.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

Other Business

Vice Mayor Camp opened other business.

- Vice Mayor Camp said Mayor Brown is asking for direction or feedback on the 4th of July Fireworks Show and the Third Thursday concerts.

Council discussed.

Council requested these items be moved to the next Committee Meeting for more discussion.

- Vice Mayor Camp said Mayor Brown has ended the State of Emergency. He added that the zoom meetings will continue through June 2020, solicitors will now be allowed and allowing GPU to cutoff services for pass due accounts.

Councilman Hayes read the policy for GPU pass due accounts.

Public Utilities Director David Gregory was in agreement with the June cutoff policies.

With no one else wishing to speak Vice Mayor Camp closed other business.

Public Recognition on Non-Agenda Related Items

Vice Mayor Camp opened public recognition on non-agenda related items.

- Communications Director Jeff Hentschel opened the lines for the participants to speak.
- Michelle Jouvence made no comment.

With no one wishing to speak public recognition on non-agenda related items was closed.

Adjourn

Vice Mayor Camp adjourned the meeting at 6:35 P.M. without objection.

Vice Mayor Steve Camp

City Recorder Connie Kittrell

ORDINANCE AUTHORIZING ADDITIONAL FUNDS IN THE TOTAL AMOUNT OF \$3,652,676.37 FROM REMAINING GAS SYSTEM REVENUE BOND SALES, SERIES 2019 FOR ADDITIONS TO EXISTING CONTRACT "2019 ANNUAL GAS LINE CONSTRUCTION" IN VARIOUS AREAS OF THE CITY

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that City Council appropriate the remaining funds from Gas System Revenue Bonds, Series 2019 for Contract "2019 Annual Natural Gas Line Construction" submitted by James N. Bush Construction Co., Inc. in the amount of \$3,652,676.37.

BE IT FURTHER ORDAINED, BY THE CITY OF GALLATIN, TENNESSEE, that this ordinance shall take effect from and after its passage, the public welfare requiring it.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

[June 23, 2020]

DEPARTMENT: **Utilities**

AGENDA # 1

SUBJECT:

Ordinance # O2007-26 authorizing additional funds in the total amount of \$3,652,676.37 from remaining Gas System Revenue Bond Sales, Series 2019, for additions to existing contract "2019 Annual Gas Line Construction" in various areas of the City.

SUMMARY:

Ordinance authorizing and appropriating additional funds in the total amount of \$3,652,676.37 from remaining Gas System Revenue Bond Sales, Series 2019 .

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02007-28

**ORDINANCE APPROPRIATING FUNDS TO
COMMUNITY ENHANCEMENT GRANTS AND
COMMUNITY SERVICE GRANTS FOR FY 2021**

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum
of \$225,000 is hereby transferred from Community Enhancement Grants, 11044200-720,
to the following accounts:

11044200	720	129	GALLATIN PUBLIC LIBRARY	33,000.00
11044200	720	130	SUMNER CO MUSEUM ASSOCIATION	17,500.00
11044200	720	131	GALLATIN DAY CARE	16,000.00
11044200	720	133	LITERACY COUNCIL	1,750.00
11044200	720	134	MID CUMBERLAND AGENCIES	2,500.00
11044200	720	135	SHALOM	5,000.00
11044200	720	136	GALLATIN SENIOR CITIZENS	23,000.00
11044200	720	138	TROUSDALE PLACE	1,200.00
11044200	720	139	VOL STATE SMALL BUSINESS DEVEL	5,000.00
11044200	720	173	HOMESAFE	2,000.00
11044200	720	174	CUMBERLAND CRISIS PREGNANCY	2,000.00
11044200	720	175	STARS	2,300.00
11044200	720	176	HATS	1,000.00
11044200	720	177	SUMNER TEEN CENTER	1,500.00
11044200	720	179	CASA	3,900.00
11044200	720	219	DECISIONS CHOICES & OPTIONS	1,800.00
11044200	720	220	GALLATIN ARTS COUNCIL	5,000.00
11044200	720	221	SALVUS CENTER	4,800.00
11044200	720	222	SUMNER SPAY NEUTER ALLIANCE	3,150.00
11044200	720	241	GALLATIN CHILDCARE CENTER	9,600.00
11044300	720	140	CHAMBER OF COMMERCE	38,000.00
11044300	720	142	GREATER GALLATIN	25,000.00
11044300	720	143	ROSEMONT RESTORATION	20,000.00

and;

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE,
that this Ordinance shall take effect from and after its final passage, the public welfare
requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

06/23/2020

DEPARTMENT: **Finance**

AGENDA #

SUBJECT:

Ordinance appropriating community enhancement grants for 2021

SUMMARY:

Ordinance moving previously budget community enhancement grant funds into individual general ledger accounts

RECOMMENDATION:

approval

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved
Rejected
Deferred

☒
☐
☐

Notes:

ORDINANCE APPROPRIATING \$8,400,000 FOR
PROJECT WOOL HAWK UTILITY INFRASTRUCTURE

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$8,400,000 is hereby appropriated from the Water/Sewer Fund Donations, account number 413-36700, with \$3,400,000 being appropriated to Water Transmission and Distribution, account 41352114-934-256, and \$5,000,000 being appropriated to Sewer Collection (Lines), account 41352211-934-256, for the utility line infrastructure installation related to Project Wool Hawk; and,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

A RESOLUTION AMENDING THE URBAN GROWTH BOUNDARY FOR THE CITY OF GALLATIN AND AMENDING THE GROWTH PLAN FOR SUMNER COUNTY TENNESSEE, BY ADDING A 10.51± ACRE PARCEL, A 0.24 ± ACRE PORTION OF PARCEL, A 0.04± ACRE PORTION OF THE OLD HICKORY LAKE RESERVATION AND A 9.33± ACRE PORTION OF BIG STATION CAMP BOULEVARD RIGHT-OF-WAY TO THE GALLATIN URBAN GROWTH BOUNDARY

WHEREAS, a single parcel of land and a portion of a parcel of land located on the east side of Big Station Camp Boulevard, comprising 10.75± acres, and a portion of the Old Hickory Lake Reservation and a portion of Big Station Camp Boulevard right-of-way, comprising 9.57 acres, is located within the current Urban Growth Boundary (UGB) of the City of Hendersonville, Tennessee; and

WHEREAS, the City of Gallatin and the City of Hendersonville desire to amend the Urban Growth Boundary of the Cities by contracting the Urban Growth Boundary of the City of Hendersonville to remove certain properties and rights-of-way from the City of Hendersonville's Urban Growth Boundary and to add the same properties and right-of-way to the City of Gallatin's Urban Growth Boundary; and

WHEREAS, the City of Hendersonville is considering a similar resolution to contract the boundary line of the its Urban Growth Boundary as described above to allow for the City of Gallatin to expand its Urban Growth Boundary, and

WHEREAS, the City of Gallatin desires to amend its Urban Growth Boundary line along a common boundary line of the two cities upon approval of this resolution and upon approval by the Local Government Policy and Advisory Committee (LGPAC), conditioned upon adoption of a resolution by the City of Hendersonville to do the same, as requested by a contiguous property owner and/or the City of Gallatin, meeting the requirements of T.C.A. 6-58-118, which does not require the county coordinating committee to approve.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Gallatin City Council hereby approves amendment of the Urban Growth Boundary of the City of Gallatin as follows:

Section 1. The property identified as Tax Map 137, Parcel 011.01 consisting of 10.51± acres, and a portion of parcel 012.00, consisting of 0.24± acres, and a 0.04± acre portion of the Old Hickory Reservoir Reservation located north of Lakeland Drive, and all of Big Station Camp Boulevard right-of-way located between just south of Lakeland Drive at the current Gallatin City Limits and the CSX Railroad consisting of approximately 9.33± acres, as shown on the Sumner County, Tennessee, Tax Assessor's Office, and as indicated in Exhibit 'A' is hereby added to the Urban Growth Boundary of the City of Gallatin upon approval by the LGPAC. By taking such action the Hendersonville Urban Growth Boundary and Gallatin Urban Growth Boundary will be set to the western right-of-way line of Big Station Camp Boulevard right-of-way from just south of Lakeland Drive and Lower Station Camp Creek Road, approximately 800 feet north of

Nashville Pike, to the south right-of-way line of the CSX Railroad. This will permit the Big Station Camp Boulevard right-of-way, as described above, and the aforementioned parcels to be annexed into the Gallatin City Limits for its entirety from Nashville Pike to the CSX Railroad right-of-way and, upon approval of a similar resolution by the City of Hendersonville, to permit the properties described above to be removed from the Hendersonville Urban Growth Boundary.

Section 2. All ordinances or resolutions or parts of ordinances or resolutions in conflict with the provisions of this resolution are hereby repealed to the extent of such conflict.

Section 3. Upon approval of the Resolution and approval by the LGPAC the Urban Growth Boundary shall be amended on official maps of the City.

Section 4. If any provision of this resolution or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the resolution which can be given effect without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This resolution shall take effect at the earliest date allowed by law, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING.

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Map of Urban Growth Boundary Adjustments

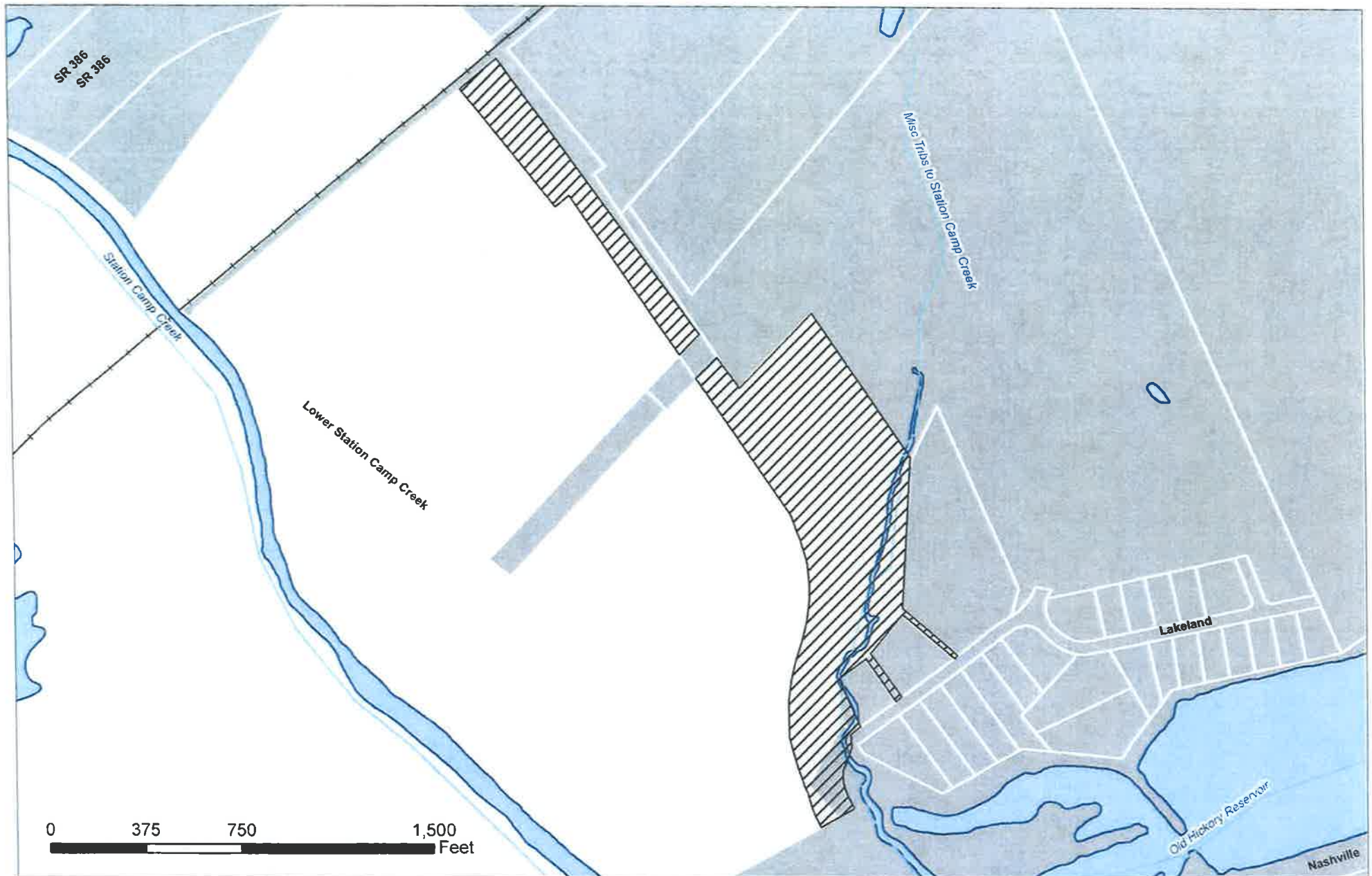


EXHIBIT A

**City of Gallatin, TN
Sumner County**



Area to Add to the Gallatin UGB and Remove from the Hendersonville UGB



**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

June 9, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2006-32 of the City of Gallatin, Sumner County, Tennessee, to adopt an amendment to the Urban Growth Boundary of the City of Gallatin affecting four properties and part of the Big Station Camp Creek Boulevard right-of-way located in the area south of the CSX Railroad and north of Nashville Pike.

SUMMARY:

This is a resolution of the City of Gallatin, Sumner County, Tennessee, adopting an amendment to the Urban Growth Boundary. This change will be considered with a similar change by the City of Hendersonville and only involves these two jurisdictions per Tennessee Code Annotated 6-58-118. The result of the Urban Growth Boundary amendment would be to remove 2.46 acres of property from the Gallatin Urban Growth Boundary area and to allow for the area to be included in the Hendersonville Urban Growth Boundary area and, likewise, to convey 20.12 acres of property and right-of-way, now in the Hendersonville Urban Growth Boundary, to be included in the Gallatin Urban Growth Boundary. Hendersonville is working on a similar resolution to do the same.

RECOMMENDATION:

The Gallatin Municipal-Regional Planning Commission will discuss the proposed Urban Growth Boundary change at the on June 8th work session and at the regular meeting on June 22nd.

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

**RESOLUTION APPROVING A WAIVER OF THE SURETY AND DEVELOPMENT
REVIEW AND INSPECTION FEES**

BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Site Surety and other development deposits and site plans fees, including code review and inspection fees, required by Chapter 2, Article III, Section 2-154, and Chapter 5, Section 5-68, Section 5-91, Section 5-120, Section 5-155, Section 5-216, and Section 5-263, Gallatin City Code, for the Sumner County Administration Complex – 2020 Parking Addition, located at 355 North Belvedere Drive, is waived; and

BE IT FURTHER RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that this resolution shall take effect upon passage, the public welfare requiring it.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

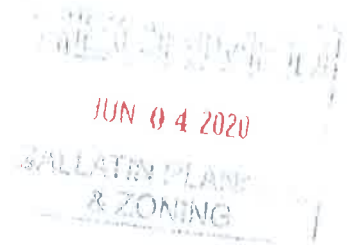
CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY



ANTHONY HOLT
SUMNER COUNTY MAYOR



May 7, 2020

Gallatin Planning Department
132 West Main Street, Room 201
Gallatin, Tennessee 37066

Gallatin Building Codes Department
132 West Main Street, Room 202
Gallatin, Tennessee 37066

Gallatin Engineering Department
633 Long Hollow Pike
Gallatin, Tennessee 37066

Re: Sumner County Administration Complex – 2020 Parking Addition – Waiver of Fees
355 N. Belvedere Drive, Gallatin, TN 37066

Honorable City Leaders:

Sumner County requests a waiver for the City of Gallatin fees associated with the planning, engineering and codes review as well as all permit fees for the Sumner County Administration Complex 2020 parking addition project. The Sumner County Development Services and the Sumner County Building Codes offices will be responsible for the oversight and inspection of this project. Sumner County Engineer, Richard Jones, will continue to coordinate with the City of Gallatin offices to ensure all project items are addressed for the plan review process.

Sumner County requests a waiver of the City of Gallatin contractor bond requirement for this project. The contractor will be required to obtain a performance and payment bond for the project as a requirement of the Sumner County Purchasing Policy.

If you require additional information, feel free to contact me at (615) 452-3604, aholt@sumnercountyttn.gov or Kim Norfleet at (615) 442-1163, knorfleet@sumnercountyttn.gov.

Sincerely,

Anthony Holt
Sumner County Mayor

CC: City of Gallatin Mayor's Office

355 NORTH BELVEDERE DRIVE • ROOM 102 • GALLATIN, TENNESSEE 37066-5413 • (615) 452-3604 • FAX (615) 451-6066
E-MAIL: aholt@sumnercountyttn.gov • WEBSITE: www.sumnercountyttn.gov

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

June 23, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

Resolution No. R2007-33 of the City of Gallatin, Sumner County, Tennessee, waiving the Site Surety and other development deposits and site plans fees, including code review and inspection fees, associated with the Sumner County Parking Addition.

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, waiving the Site Surety and other development deposits and site plans fees, including code review and inspection fees, associated with the Sumner County Parking Addition site, located at 355 North Belvedere Drive; and providing an effective date. A letter from the Sumner County Mayor requesting the waiver is attached.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2007-34

**RESOLUTION APPROVING THE USE OF CITY RIGHT-OF-WAY AND APPROVING
A HOLD HARMLESS AGREEMENT WITH CERTIFICATE OF LIABILITY
INSURANCE TO USE A PORTION OF THE WEST EASTLAND AVENUE RIGHT-OF-
WAY FOR THE INSTALLATION AND MAINTENANCE OF AN AWNING ON THE
STRUCTURE AT 241 WEST EASTLAND STREET**

WHEREAS, the property owner seeks approval from the Gallatin City Council to install and maintain an awning over the sidewalk within the right-of-way at 241 West Eastland Street, and

WHEREAS, on February 26, 2020, the Planning Department administratively approved a Site Plan (Change of Use) for the structure;

NOW THEREFORE BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Gallatin City Council approves the use of right-of-way to install and maintain an awning on the front of the building at 241 West Eastland Street; and the Hold Harmless Agreement with a Certificate of Liability Insurance. Said awning shall be maintained by the property owner and all other city ordinances, rules and regulations shall be followed with respect to the installation and maintenance of the awning.

BE IT FURTHER RESOLVED, that this resolution shall take effect upon passage, the public welfare requiring it.

IT IS SO ORDERED.

AYE:

NAY:

DATE:

PAIGE BROWN, MAYOR

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCCAULEY
CITY ATTORNEY

For use with applications made pursuant to Gallatin Municipal Code § 15-3, GMC § 15-6, & Gallatin Zoning Ordinance § 13.07.

INDEMNITY AND HOLD HARMLESS AGREEMENT

The undersigned property owner/s MATTHEW PETRIN
EDWARD THOMPSON
SUZANNE (PETRIN) THOMPSON hereinafter "Indemnitor" does hereby grant to the City of Gallatin, a Tennessee municipal corporation, hereinafter called the "City" on this 5th day of MARCH, 2020, the following:

WHEREAS, Indemnitor desires to locate a/an AWNING (hereinafter "structure") on or over the City right-of-way in accordance with the Municipal Code and/or Zoning Ordinance on property located at 241 W. EASTLAND AVE, Gallatin, Tennessee and;

WHEREAS, Indemnitor agrees to indemnify and hold harmless the City, its agents, servants, and employees from any claims and liability which may be made against the City for permitting the structure to be located on or over the City right-of-way.

NOW THEREFORE, in consideration of the City permitting the Indemnitor to locate the structure on or over the City right-of-way, the Indemnitor hereby agrees:

Indemnitor undertakes to indemnify the City from any and all liability, loss, or damage the City may suffer as a result of the claims, demands, costs or judgments against and arising from the location of the Indemnitor's structure being on or over the City's right-of-way.

Indemnitor agrees to defend, at its own expense against any claims brought or actions filed against the City with respect to the subject of the indemnity contained herein, whether such claims or actions are rightfully or wrongfully brought or filed.

Indemnitor agrees to reimburse the City for any necessary expenses, attorney fees, or costs incurred in the enforcement of this Indemnity Agreement.

Indemnitor agrees to maintain in full force and effect a policy of comprehensive liability insurance in a minimum amount of one million dollars (\$1,000,000), said policy to name the City as an additional insured. A copy of the initial certificate of insurance shall be provided by the Indemnitor within ten (10) days of execution of this Agreement, and prior to placement of the structure on or over the City's right-of-way.

Indemnitor hereby agrees to abide by any local, state or federal law regulating the placement of the structure on or over the City's right-of-way. By signing this Agreement, Indemnitor acknowledges that the permission granted by the City herein may be revoked: 1) at any time in the interests of public health, safety & welfare; 2) in the event that it becomes necessary for the City to perform maintenance of any sort on the City's right-of-way; or 3) if the Indemnitor fails to perform any of its obligations under this Agreement. Said removal will be at the sole expense of the Indemnitor.

PG 9 OF 10 + COF

If after notice to remove given by the City pursuant to the paragraph above, the Indemnitor fails to remove the structure as requested by the City, the Indemnitor agrees and understands that the City will remove the structure and assess the costs of removal to the Indemnitor.

In witness hereof, the Indemnitor has/have executed this agreement on the date first written above.

Edward Thompson for PARTNERS
SUZANNE THOMPSON and MATTHEW PERIN

PROPERTY OWNERS

STATE OF TENNESSEE
COUNTY OF SUMNER

(CALLATION, TN INDEMNITY & HOLD
HARMLESS AGREEMENT FOR AWWINGS)

I, Tamasa Holden, Notary Public in and for said county in said state, hereby certify that Edward Thompson whose name(s) is/are signed to the foregoing instrument and who is/are known to me, acknowledged before me on this day that being informed of the contents of this Agreement, have executed the same on the date first written above.

Given under my hand and official seal on this the 20 day of March, 2020

[Signature]
[Notary Information per statute]



My Commission Expires
July 9, 2022



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)
03/10/2020

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Brown & Brown of Tennessee, Inc. 6 Cadillac Drive, Suite 200 Brentwood TN 37027		CONTACT NAME: Juanita Kirby PHONE (A/C, No, Ext): (615) 383-8000 FAX (A/C, No): (615) 385-8360 E-MAIL ADDRESS: jkirby@bbtennessee.com	
INSURED Petrin and Thompson PO BOX 50514 NASHVILLE TN 37205-0514		INSURER(S) AFFORDING COVERAGE INSURER A: Main Street America Assurance Company INSURER B: INSURER C: INSURER D: INSURER E: INSURER F:	

COVERAGES **CERTIFICATE NUMBER:** Master 19-20 COI **REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVO	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR ☒ Businessowners Policy GEN'L AGGREGATE LIMIT APPLIES PER: ☐ POLICY ☐ PROJECT ☒ LOC ☐ OTHER:			BPG5381U	10/21/2019	10/21/2020	EACH OCCURRENCE \$ 1,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 500,000 MED EXP (Any one person) \$ 10,000 PERSONAL & ADV INJURY \$ 1,000,000 GENERAL AGGREGATE \$ 2,000,000 PRODUCTS - COMP/OP AGG \$
	AUTOMOBILE LIABILITY ☐ ANY AUTO ☐ OWNED AUTOS ONLY ☐ HIRED AUTOS ONLY ☐ SCHEDULED AUTOS ☐ NON-OWNED AUTOS ONLY						COMBINED SINGLE LIMIT (Ea accident) \$ No Coverage BODILY INJURY (Per person) \$ No Coverage BODILY INJURY (Per accident) \$ No Coverage PROPERTY DAMAGE (Per accident) \$
	UMBRELLA LIAB ☐ OCCUR EXCESS LIAB ☐ CLAIMS-MADE DED ☐ RETENTION \$						EACH OCCURRENCE \$ No Coverage AGGREGATE \$
	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) ☐ Y/N If yes, describe under DESCRIPTION OF OPERATIONS below	N/A					PER STATUTE ☐ OTH-ER ☐ E.L. EACH ACCIDENT \$ No Coverage E.L. DISEASE - EA EMPLOYEE \$ No Coverage E.L. DISEASE - POLICY LIMIT \$ No Coverage

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

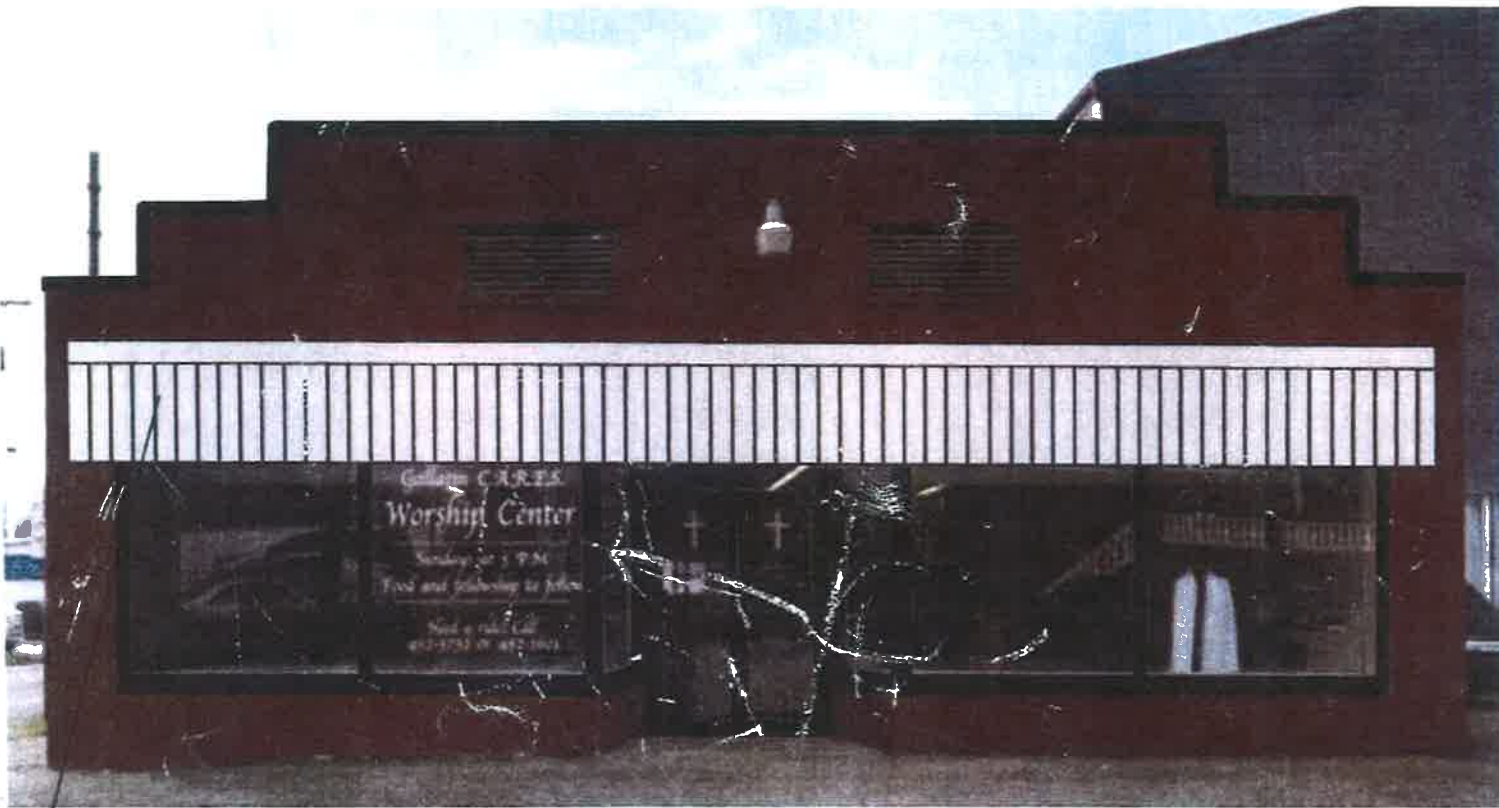
RE: 241 W. Eastland Ave., Gallatin, TN 37066

Certificate holder is names as an additional Insured as respects to the general liability when required by written contract executed prior to loss.

CERTIFICATE HOLDER City of Gallatin 132 W. Main Street Gallatin TN 37066	CANCELLATION SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS. AUTHORIZED REPRESENTATIVE <i>Juanita Kirby</i>
--	--

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CAPITAL BUILDERS & PLANNERS



AWNING COLOR SILVER



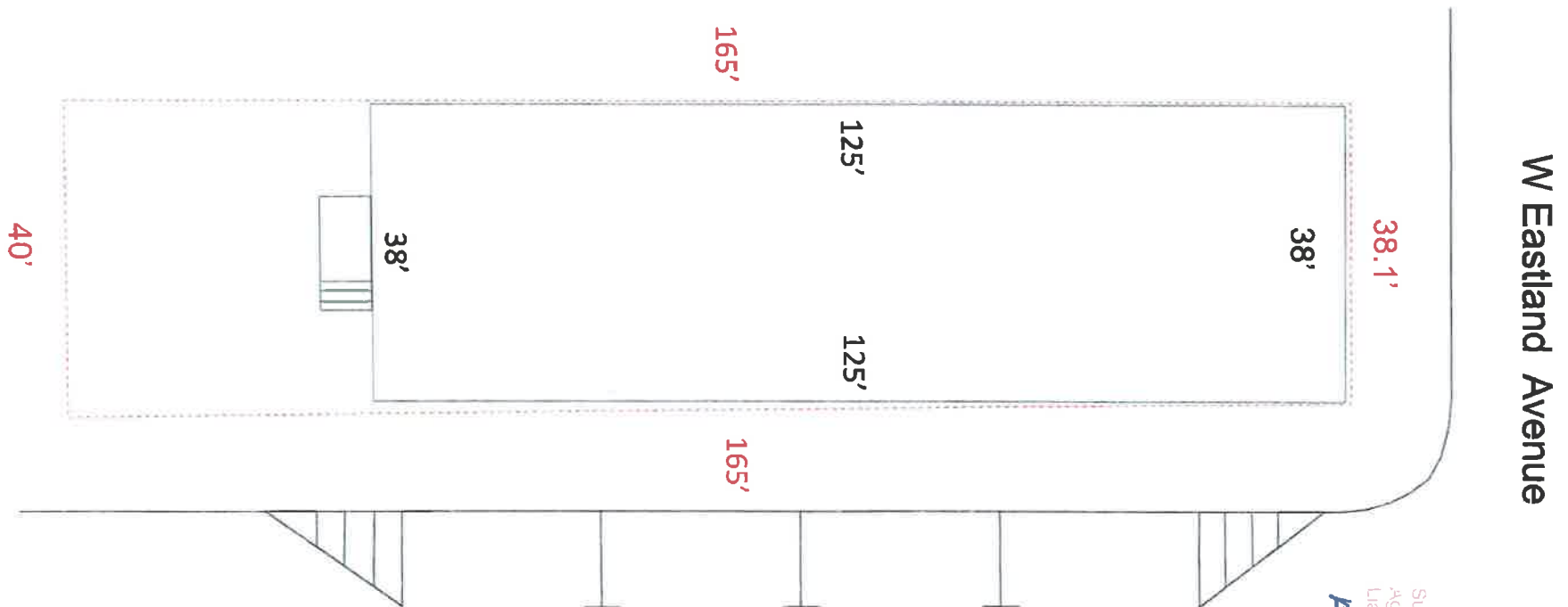
PROPOSED FRONT AWNING
Drawn by: Matthew Petrin
Building OWNER & CONTRACTOR
241 W. Eastland Avenue
Gallatin, TN 37066
March 6, 2020 LIC# 54433

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*NO ADDITIONAL SITE LIGHTING IS PROPOSED.

SITE PLAN

**241 W Eastland Avenue
Gallatin, TN 37066**



Locust Avenue

$$1'' = 15'$$

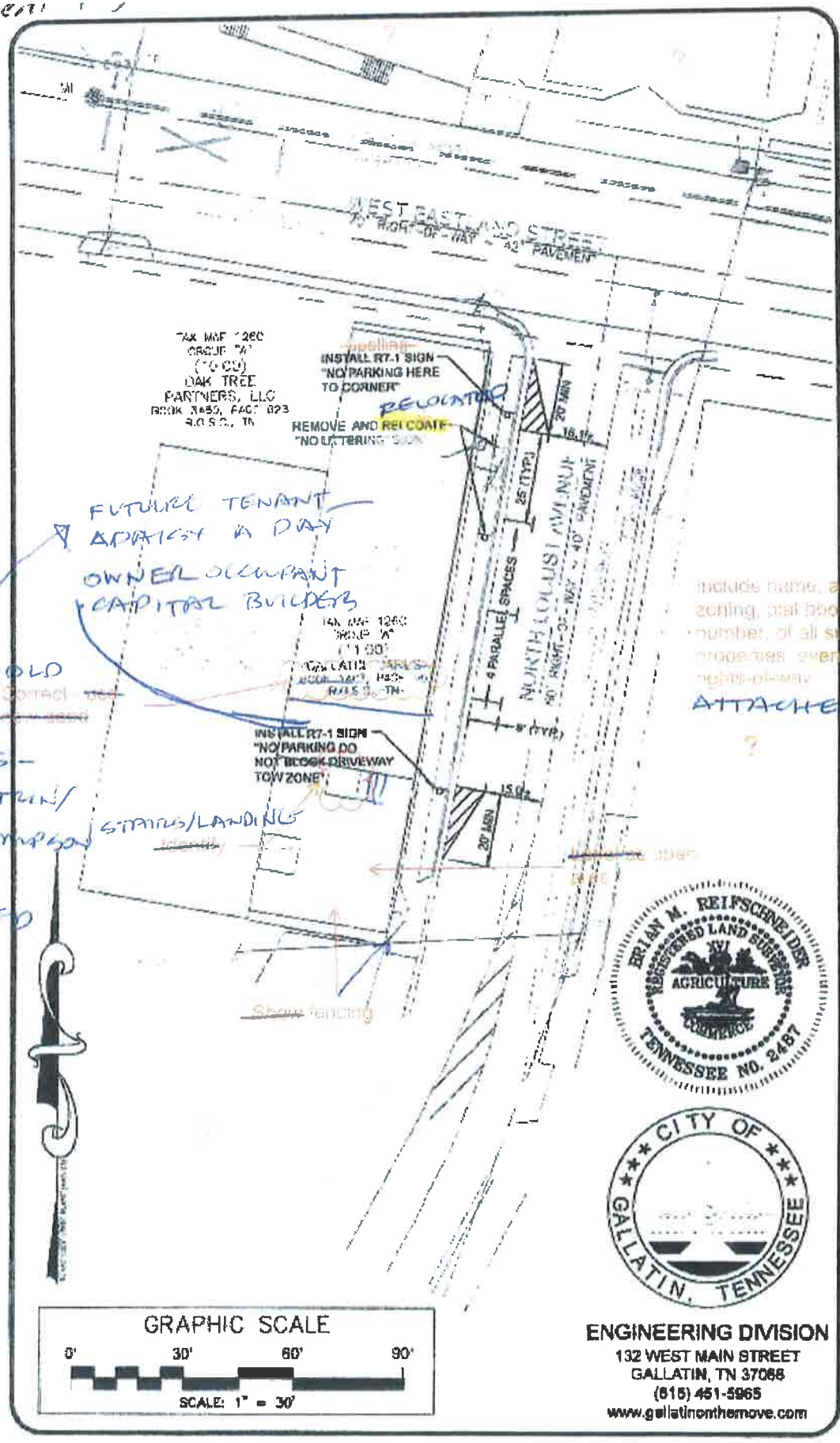
Drawn by: **Matthew M Petrin**
CAPITAL Builders
Building Owner & Contractor
218 A 37th Avenue North
Nashville, TN 37209
615 269-2694 www.capitalbuildersus.com
License # 54433 **February 5, 2020**

ATTACHED



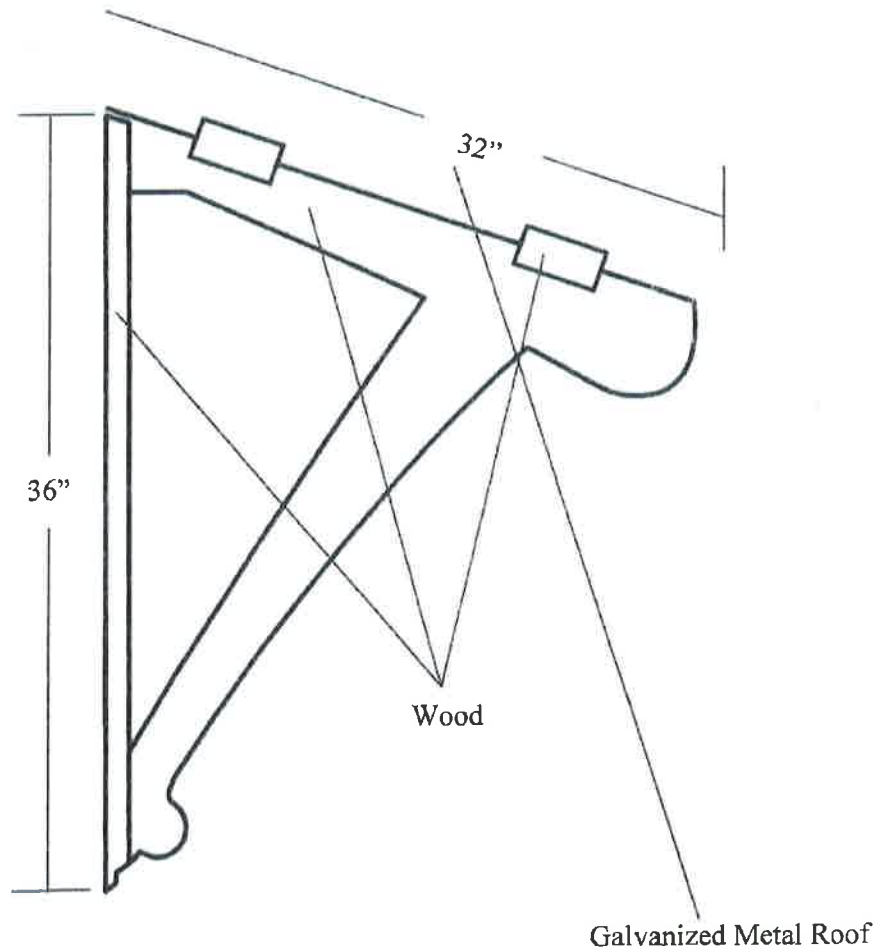
07/07/20

Jim B. [Signature]



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241 WEST EASTLAND AVE. SIDE VIEW AWNING BRACKET



DRAWN By: Matthew M. Petrin
CAPITAL Builders
Feb. 5, 2020 218 A 37th Avenue
Nashville, TN 37209
(615) 269-2694
www.capitalbuildersus.com
email: matthewpetrin@att.net

Capital
BUILDERS

SP100 2020-0035

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

June 23, 2020

DEPARTMENT: **Planning Department**

AGENDA #

SUBJECT:

Resolution No. R2007-34 allowing the use of right-of-way with an Indemnity and Hold Harmless Agreement and Liability Insurance for 241 West Eastland Street.

SUMMARY:

The owner intends to install an awning on the front façade of the building that would partially extend over the sidewalks in the City right-of-way.

On February 26, 2020, the owner of the building received administrative approval of the Change of Use site plan for 241 West Eastland Street.

The request to encroach into the City right-of-way, includes a Hold Harmless Agreement and a Certificate of Liability Insurance which requires approval from City Council. The draft resolution and Indemnity and Hold Harmless Agreement are provided in the agenda package.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes: